SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/16/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued**.** Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C25-01307
CASE NAME: MARKEE WEBB VS. SAN PABLO MEDICAL CENTER
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

If the tentative ruling at Line 10 is uncontested, further Case Management Conference is set for December 11, 2026. If either Party challenges the tentative ruling on Line 10, a Case Management Conference will be held.

2. 9:00 AM CASE NUMBER: C25-02594
CASE NAME: JANE DOE VS. CHARTHOUSE PUBLIC SCHOOLS
HEARING ON ORDER TO SHOW CAUSE IN RE: TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION
FILED BY: DOE, JANE
****TENTATIVE RULING:****

Plaintiff’s request for a preliminary injunction is **denied.**

Background and Procedural History

Plaintiff Jane Doe, who was a minor at the time of the events described below and appeared through her Guardian ad Litem Janice Doe, was a senior at the Contra Costa School of Performing Arts (“COCOSPA”), a charter school operated by Defendant Charthouse Public Schools, during the 2024-2025 school year. Defendant Gerard Flaherty was employed by Charthouse as COCOSPA’s Climate and Culture Supervisor. Plaintiff alleges that beginning in 2024, Flaherty used his position to groom her, and that on February 19, 2025, when she was seventeen years old, he sexually assaulted her after supplying her with alcohol.

Flaherty was arrested in May 2025. The Contra Costa County District Attorney's Office charged him by felony complaint with Forcible Rape of a Child Over 14, Assault with Intent to Commit a Felony on a Victim Under 18, and Unlawful Sexual Intercourse, with enhancements for great bodily injury. On October 9, 2025, Flaherty entered a guilty plea to Count 3 (Pen. Code § 261.5(c)) under a negotiated agreement and the remaining counts/enhancements were dismissed. As part of the plea, Flaherty admitted the aggravating factor that he violated a position of trust as Plaintiff's teacher and school administrator. The court (Hon. John W. Kennedy) accepted the plea over the objection of Plaintiff and her family, who asked that the matter proceed to trial. Flaherty was sentenced to the aggravated term of three years, later reflected on the abstract of judgment form as 36 months with applicable credits, and was ordered to surrender to the Martinez Detention Facility by January 5, 2026.

Plaintiff filed this civil action on September 10, 2025, asserting three causes of action: (1) sexual assault of a minor (Flaherty); (2) negligent hiring, supervision, and/or retention (Charthouse); and (3) negligent supervision of Plaintiff (Charthouse).

On June 18, 2026, Plaintiff filed an ex parte application for a temporary restraining order (TRO) and order to show cause (OSC) re: preliminary injunction, seeking to restrain Flaherty, his agents, attorneys, spouse, and others acting on his behalf from transferring, concealing, encumbering, or disposing of assets, with particular focus on a residence at 420 Kahrs Avenue in Pleasant Hill, pending resolution of this case.

On June 23, 2026, non-party Elaine Lenore, identified as Flaherty's spouse in a pending marital dissolution, Contra Costa Sup. Ct. Case No. D25-04108, filed an opposition, objecting that the Kahrs Avenue property is community property in which she holds an ownership interest under Family Code section 751, and that she was never served with or joined in Plaintiff's ex parte application despite the request for TRO purporting to bind her. She requested that the application be denied in its entirety or, at minimum, that any relief affecting the Kahrs Avenue property or her property interests be denied.

On June 23, 2026, the court (Hon. Charles S. Treat) issued a TRO ordering, among other things, that any proceeds from the sale of Flaherty's interest in the Kahrs Avenue property be held in his counsel's IOLTA trust account, and broadly restraining Flaherty and those acting on his behalf from transferring or encumbering the property, his other real property, and effectively all other categories of assets (bank accounts, securities, vehicles, jewelry, investments, business assets, etc.) pending further order. The order set a hearing on the OSC as to why a preliminary injunction should not issue on the same terms, with the TRO to remain in effect until the hearing.

On July 9, 2026, Flaherty, through counsel, filed an opposition to Plaintiff's request for a preliminary injunction. Flaherty argues that (1) Plaintiff has not demonstrated the requisite irreparable harm or likelihood of success, since no sale or transfer of the Kahrs Avenue property is pending; (2) the requested relief is overbroad and constitutes a de facto prejudgment attachment, reaching essentially all of his assets; and (3) the balance of hardships favors denial or narrow tailoring, given the pending marital dissolution proceeding and restrictions on his legitimate financial needs (though the Court notes that Plaintiff's own ex parte notice had proposed excluding transfers "in the usual course of business or for the necessities of life" from any general asset restraint, a limitation not carried into the TRO as signed.)

Analysis

Plaintiff Fails to Show Grounds for a Preliminary Injunction

A preliminary injunction is a provisional remedy governed by Code of Civil Procedure sections 525-534. (Code Civ. Proc., §§ 525-534.) The court evaluates two interrelated factors, the likelihood the moving party will prevail on the merits and the relative interim harms. (*White v. Davis* (2003) 30 Cal.4th 528, 554, 560.) A preliminary injunction operates prospectively and is aimed at preventing future conduct. (*People ex rel. Green v. Grewal* (2015) 61 Cal.4th 544, 566; *Cal-Dak Co. v. Sav-On Drugs, Inc.* (1953) 40 Cal.2d 492, 496.) It is proper only if there is a substantial basis to suppose the defendant, if not restrained, will actually engage in the conduct sought to be enjoined. (*Epstein v. Superior Court* (2011) 193 Cal.App.4th 1405, 1410 (Epstein); *Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.)

Here, even assuming Plaintiff can show a strong likelihood of prevailing on the merits, the requested relief is aimed at preserving the collectability of a future money judgment in this tort action by restraining Defendant's disposition of the Kahrs Avenue property, and, more broadly, all of Defendant's real property, tangible assets, business assets, bank accounts, securities, vehicles, and other items of value. (Cerri Decl. ¶¶ 2-6.) Plaintiff's interim harm showing rests primarily on counsel's statement that, should Defendant sell the Kahrs Avenue home without an order addressing the proceeds, he "will at some point be able to move the proceeds out of state, hide the money, gift it or otherwise ensure that the Plaintiff is unable to collect on the inevitable judgment." (Cerri Decl. ¶ 5.) This is not actual evidence of a realistic prospect that Defendant will conceal, transfer, encumber, or dispose of the property or its proceeds before judgment. (*Epstein*, *supra*, 193 Cal.App.4th at p. 1410.) Plaintiff identifies no pending sale, listing, offer, or other transaction involving the property, and no attempted transfer of any other asset.

Injunctions will rarely be granted where a suit for damages provides a clear remedy. (*Thayer Plymouth*

Center, Inc. v. Chrysler Motors (1967) 255 Cal.App.2d 300, 307; *Pacific Decision Sciences Corp v. Superior Court* (2004) 121 Cal.App.4th 1100, 1110.) “An injunction will not issue where 'only money is involved'” because “there is no threat of irreparable harm, because monetary losses are compensable in damages.” (Rutter Group, Civil Procedure Before Trial, 9:524.) To obtain a preliminary injunction, the plaintiff must demonstrate that monetary damages would not be an adequate remedy for the alleged wrongdoing. (Code Civ. Proc. § 526(a)(4) [injunction may be granted (4) When pecuniary compensation would not afford adequate relief.]; *Estes v. Rowland* (1993) 14 Cal.App.4th 508, 535 ["There is no right to equitable relief or an equitable remedy when there is an adequate remedy at law." (11 Witkin, Summary of Cal. Law (9th ed. 1990) Equity, § 3, p. 681); *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 [there must be an injury that “cannot be compensated by an ordinary damage award”].)

Plaintiff offers no actual evidence of Defendant's insolvency or inability to satisfy a judgment; to the contrary, Plaintiff's own showing is that the Kahrs Avenue property, which Defendant states is community property currently the subject of a pending marital dissolution proceeding, represents substantial, identifiable equity potentially available to satisfy a judgment. (Cerri Decl. ¶ 5; Lenore Decl. ¶ 3.) The requested restraint would function primarily as a mechanism to secure a prospective money judgment.

The Court may deny a preliminary injunction either (1) on its finding irreparable injury will not result to the party seeking the injunction, or (2) that the party has failed to demonstrate a reasonable probability of success on the merits. (*People v. Pacific Land Research Co.* (1977) 20 Cal.3d 10, 21.) Based on the foregoing, the Court finds Plaintiff has failed to meet her burden to show imminent, irreparable harm.

Plaintiff's motion relies primarily on *Oiye v. Fox* (2012) 211 Cal.App.4th 1036 (Oiye), for the proposition that a tort claimant is a “creditor” entitled to injunctive relief against a defendant's disposition of assets even before judgment. *Oiye*, though it also involved a defendant convicted of sexually assaulting a minor victim and sentenced to state prison, is distinguishable. There, the plaintiff pled a fraudulent transfer cause of action under the then-Uniform Fraudulent Transfer Act (“UFTA”), since renamed the Uniform Voidable Transactions Act (“UVTA”), and alleged that, shortly after defendant's arrest, he transferred his residence to a trust to hinder, delay, or defraud a creditor. (*Oiye*, *supra*, 211 Cal.App.4th at pp. 1045 to 1046.) The Court of Appeal affirmed a preliminary injunction as a UFTA remedy authorized by Civil Code section 3439.07, subdivision (a)(3)(A), and held the timing and nature of the documented conveyance to a trust supported an inference of asset shielding and potential injury sufficient to restrain further disposition. (*Id*. at pp. 1057 to 1060.)

Here, by contrast, Plaintiff's complaint pleads tort causes of action only and does not plead a fraudulent transfer claim or present evidence of a documented transfer comparable to the conveyance to a trust in *Oiye*. Counsel’s declaration states that “Flaherty has not yet transferred assets to Plaintiff's knowledge.” (Cerri Decl. ¶ 5.) On this record, *Oiye* does not support the requested injunction.

Plaintiff Fails to Establish that Attachment Requirements Have Been Satisfied

"The remedies provided by the Attachment Law are not exclusive; in some situations, an injunction may be a more satisfactory remedy. Accordingly, [Code of Civil Procedure section] 482.020 states that nothing in the Attachment Law precludes the granting of injunctive relief; i.e., the court should not refuse the equitable remedy of injunction on the ground that the attachment statute provides an adequate remedy at law. However, an injunction may not be used to obtain what is actually an attachment without meeting the requirements for an attachment." (6 Witkin, Cal. Proc. (5th ed. 2008), § 49, citing *Doyka v. Superior Court* (1991) 233 Cal.App.3d 1134, 1136 (Doyka).)

In *Doyka*, the trial court enjoined the defendant from "'secreting, using, distributing, transferring, or otherwise disposing of all or any portion of funds in the sum of One Hundred Twenty-five Thousand and no/100 ($125,000.00), whether on deposit in The Pacific Bank, or in any other lending or financial institution ... for any purpose relating to the construction, renovation, and/or sale or other disposition of all or any portion of the real property and improvements located at 2572-2588 Pine Street, San Francisco, California, or for any other use or purpose whatsoever.'" (*Doyka*, *supra*, 233 Cal.App.3d at p. 1136.) The Court of Appeal reversed the order, which "effectively impose[d] a prejudgment attachment upon all of Doyka's liquid assets without satisfying the statutory requirements for an attachment." (*Ibid*.)

Plaintiff could only obtain what amounted to an attachment through a preliminary injunction if all the statutory requirements of attachment were satisfied. Plaintiff does not claim to have satisfied the requirements of the statute.

Disposition

Plaintiff's request for preliminary injunction is **denied**. The June 23, 2026 TRO is **dissolved**. Nothing in this order precludes the parties from stipulating to a narrower or alternative arrangement, including with respect to the disposition or preservation of proceeds from any sale of the Kahrs Avenue property. Because the Court denies the request for injunction on the merits, it does not reach Elaine Lenore's opposition regarding her community property interest in the Kahrs Avenue property or the adequacy of notice to her.

3. 12:00 PM CASE NUMBER: MSC21-00653
CASE NAME: WANG BROTHERS VS EAST BAY MUD
COURT TRIAL HEARING
FILED BY:
TENTATIVE RULING:*

This is set for ongoing court trial at 1:30.